



SPONSOR: Sen. Pinkney & Rep. Griffith
Sens. Brown, Hoffner, Lockman, Sokola, Sturgeon,
Townsend; Rep. Romer

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 179

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO THE DELAWARE SENTENCING GUIDELINES AND ACCOUNTABILITY COMMISSION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Subchapter X, Chapter 65, Title 11 of the Delaware Code is hereby repealed.

Section 2. Amend Chapter 89A, Title 11 of the Delaware Code by making deletions as shown by strikethrough and insertions as shown by underline as follows:

CHAPTER 89A. ~~Delaware County and Municipal Police/Firefighters' Retiree Pension Plan [Repealed].~~ The Delaware Sentencing Guidelines and Accountability Commission.

~~§§ 8901A-8906A. Definitions; optional participation of counties and municipalities; payment of pension; adjustment of benefits; employer contributions; fund established [Repealed].~~

§ 8901A. Mission statement.

(a) The Delaware Sentencing Guidelines and Accountability Commission is an independent body committed to studying and utilizing evidence-based sentencing practices and updating sentencing guidelines to:

(1) Hold individuals convicted of criminal acts accountable for their actions.

(2) Minimize the likelihood that individuals will commit repeat offenses.

§ 8902A. Established.

(a) The Delaware Sentencing Guidelines and Accountability Commission ("Commission") is hereby established.

(b) For administrative and budgetary purposes, the Commission shall be placed within the Criminal Justice Council.

§ 8903A. Commission membership.

(a) The 9 members of the Commission are as follows:

(1) Three members of the judiciary appointed by the Chief Justice.

(2) Three members from the Department of Justice, Criminal Division, appointed by the Attorney

General.

(3) Two members from the Office of Defense Services, appointed by the Chief Defender.

(4) One private Delaware attorney primarily practicing in criminal defense appointed by the Chief Defender, in consultation with the Chief of Conflicts Counsel.

(c) The Chief Justice shall designate 1 member of the judiciary serving on the Commission to serve as Chair of the Commission. The Chief Justice shall designate 1 member of the judiciary serving on the Commission to serve as the Vice Chair of the Commission who shall serve as Chair in the Chair's absence if the Chair resigns or is no longer a member of the Commission.

(d) The members of the Commission shall serve at the pleasure of the appointing authority.

(e) A quorum shall consist of a majority of the members of the Commission, but must include at least one member from subsection (a)(1), one member from subsection (a)(2), and one member from either subsection (a)(3) or (4) under this section.

(f) Members of the Commission serve without compensation, except that members may be reimbursed for reasonable expenses incurred in their work for the Commission.

(g) The Commission may convene, as necessary, advisory committees to assist the Commission in its deliberations and to identify, analyze, and address sentencing policies. Advisory committees may include individuals who are not members of the Commission, including representatives from state and local government agencies, non-governmental organizations, and the public.

§ 8904A. Employees.

(a) The Commission shall select an Executive Director to serve at the pleasure of the Commission. The Executive Director's responsibilities include all of the following:

(1) Act as secretary to the Commission and ensure performance of all tasks assigned to the Commission.

(2) Supervise activities of additional persons employed by the Commission.

(3) Maintain contacts with other criminal justice agencies involved in sentencing.

(4) Assist the Commission with budget recommendations.

(5) Other responsibilities as directed by the Commission.

(b) The Executive Director shall be qualified by education or experience to carry out the mission of the Commission and shall report to the Executive Director of the Criminal Justice Council.

(c) The Executive Director may employ such personnel as are necessary to carry out the functions of this chapter, subject to the approval of the Commission and within the limits of any appropriation made by the General Assembly.

§ 8905A. Powers and duties.

52 (a) The Commission shall review the current sentencing guidelines on an ongoing basis and recommend updates to
53 the guidelines and the Delaware Code as appropriate to ensure sentencing consistent with the seriousness of the offense and
54 taking into consideration evidence-based practices to reduce recidivism. The sentencing guidelines shall:

55 (1) Be the presumption in the sentencing of individuals.

56 (2) Address the selection and severity of sanctions.

57 (b) Upon reasonable request of the Commission, each state agency shall make its services and information
58 available to the Commission in the execution of its duties.

59 (1) The Commission shall have the authority to enter partnerships or agreements with organizations and
60 agencies including academic entities and other sentencing commissions to perform research needed to carry out
61 the Commission's duties.

62 (2) It shall be the duty of all officials of the State or any political subdivision thereof to furnish any
63 information and compile any report which may be reasonably requested by the Commission.

64 (3) The Commission shall take all reasonable steps to preserve the confidentiality of information received
65 under this section.

66 (c) The Commission shall allow public comment at its meetings in accordance with § 10004 of Title 29.
67 § 8906A. Annual report and data collection.

68 (a) The Commission shall annually compile a report describing any substantive changes made to the guidelines
69 during the preceding year.

70 (b) The Commission shall submit the report to all of the following not later than October 1 of each year:

71 (1) The President Pro Tempore of the Senate.

72 (2) The Speaker of the House of Representatives.

73 (3) The Chief Justice.

74 (4) The Attorney General.

75 (5) The Chief Defender.

76 (6) The Director of the Division of Legislative Services.

77 (7) The State Archivist.

78 (8) The Governor.

79 (c) If funding is available to the Commission, the Commission is authorized to collaborate with the Statistical
80 Analysis Center on sentencing-related data collection.

SYNOPSIS

This Act repeals Subchapter X of Title 11 which established the Delaware Sentencing Accountability Commission (Commission) and recodifies the Commission under Chapter 89A of Title 11.

This Act modernizes the Commission's mission, establishes the membership of the Commission, codifies the Commission's overall power and authority, and creates a duty for the Commission to provide a data report annually.

Author: Senator Pinkney